

ENTERPRISE CONTRACT POLICY PLAYBOOK

1. Standard Indemnification Policy

Standard Position: Mutual indemnification limited to third-party claims arising from gross negligence, willful misconduct, or breach of contract.

Fall-back Position: Single-way indemnification by Vendor for IP infringement only.

Unacceptable Position: Indemnifying Client for Client's own negligence.

2. Limitation of Liability Standard

Standard Cap: 1x to 2x Annual Contract Value.

Excluded Claims: Confidentiality breach, gross negligence, and willful misconduct.

3. Payment Terms Standard

Standard Term: Net 30 or Net 45 days.

Unacceptable: Net 90 or payment contingent on Client satisfaction.

4. Termination Notice Standard

Termination for Convenience: 30 to 60 days written notice required for both parties.